

TENTATIVE RULINGS

Date: June 25, 2026

#	Case Name	Tentative
1.	30-2025-01513512 Kennedy vs. Yari Film Group, LLC	1. Motion to Quash Service of Summons Specially Appearing Defendant, Bob Yari (“Moving Party”) moves to quash the “purported substitute service of the Summons and Complaint . . . on the ground of lack of jurisdiction over Defendant due to defective service.” The motion is made pursuant to Code of Civil Procedure sections 415.20(b) and 418.10. The Motion is unopposed. The Motion is GRANTED. “In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court’s personal jurisdiction over a defendant....When a defendant challenges that jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service....” (<i>Floveyor Internat., Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 793 [citing <i>Dill v. Berquist Construction Co.</i> (1994) 24 Cal.App.4th 1426, 1439-1440]; see also <i>American Express Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 387 [“When a defendant argues that service of summons did not bring him or her within the trial court’s jurisdiction, the plaintiff has ‘the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.’”].) “The Code of Civil Procedure specifies the various methods by which service may be made upon defendants who are sued as individuals.” (<i>American Express Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 389; Code Civ. Proc., §§ 415.10 et seq.) Code of Civil Procedure section 415.20(b) states: “If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.” (Code Civ. Proc., § 415.20, subd. (b).)

“However, an individual may be served by substitute service only after a good faith effort at personal service has first been made: the burden is on the plaintiff to show that the summons and complaint ‘cannot with reasonable diligence be personally delivered’ to the individual defendant.” (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 389 [citing § 415.20, subd. (b); *Evartt v. Superior Court* (1979) 89 Cal.App.3d 795, 801.]) “Two or three attempts to personally serve a defendant at a proper place ordinarily qualifies as ‘reasonable diligence.’ ” (*Ibid.*; see also *Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750.)

Here, Moving Party correctly argues that service was not proper pursuant to Code of Civil Procedure section 415.20(b) because Plaintiff did not establish a good faith effort at personal service prior to serving the summons and complaint by mail.

Plaintiff filed a “Declaration of Mailing” that was signed by Jesus Alvarez who declared that, on “October 21, 2025, after substituted service was made,” he mailed the summons and complaint. The declaration is devoid of any discussion regarding Alvarez’s good faith attempts to personally serve the summons and complaint on Moving Party prior to service by mail. As such, the declaration does not establish that the summons and complaint could not, with reasonable diligence, be personally delivered on Moving Party.

As discussed above, Plaintiff bears the burden of establishing the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service. The motion is unopposed, however, and therefore Plaintiff has not carried this burden.

Moreover, Plaintiff’s failure to oppose the motion is considered an implied concession regarding the merits of the arguments presented in the motion. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20; *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566, *as modified* (Jan. 25, 2000) [“By failing to argue the contrary, plaintiffs concede this issue.”]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [holding that “by failed to address” an issue, the issue is “impliedly concede[d].”]; and *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 [“Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot.”].)

Given the above, the Motion is **GRANTED**.

Moving Party to give notice.

2. 30-2025-01521534

**Marquez vs. Kia
America, Inc.**

**1. Case Management Conference
2. Motion to Strike Portions of Complaint**

Defendant Kia America, Inc. (hereinafter “Kia”) moves to strike paragraphs 32 and 59, and Item 5 from the Prayer, which seek civil penalties pursuant to Civil Code section 1794(c) on the grounds that the Complaint fails to allege facts to show compliance with Code of Civil Procedure section 871.24 and Plaintiff is therefore not entitled to recover civil penalties pursuant to Civil Code section 1794(c).

Initially, the Court notes that Plaintiff’s counsel failed to meet and confer in violation of CCP§435.5. Further lack of adherence to code may result in sanctions.

Based on applicable law, and as set forth below, the **Motion is GRANTED with 20 days leave to amend.**